

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

JANA SABO,

Petitioner

VS.

ERIC OSMOLINSKI,

Respondent

) Case Number: FDI-25-801763

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, SPOUSAL OR PARTNER SUPPORT, ATTORNEY  
FEES AND COSTS

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the  
Court makes the following findings and orders:

**A. Procedural History**

- 1) Petitioner Jana Sabo (Mother) and Respondent Eric Osmolinski (Father) married on 2/19/2011.  
Mother contends the parties separated on 8/1/2025, for a marriage of 14 years and 5 months.  
Father states the date of separation is in November 2023, for a marriage of 12 years and 9 months.  
The parties have three minor children, Jacob (DOB: 7/25/2011, age 14), Julian (DOB: 3/21/2014,  
age 12), and Lucas (DOB: 2/14/2016, age 10). Mother is represented by attorney Joseph  
Willmore. Father is represented by attorney Katy Gasparini.
- 2) There is currently a trial pending before the Honorable Judge Gold in related Case No. FDV-26-  
819044 on Mother's Request for Domestic Violence Restraining order to protect herself and the  
minor children against Father. The first day of trial occurred on 7/1/2026. There are two days of  
trial remaining, 7/22/2026 and 7/28/2026.
- 3) A 1st Amended Temporary Restraining Order (TRO) in was filed 4/29/2026 in the related FDV  
case which protects Mother and the parties' minor children against Father. Among other orders,

1 the TRO requires Father to move out of the residence located at 2442 Larkin St. San Francisco,  
2 CA 94109, grants Mother temporary legal and physical custody of the children, and grants Father  
3 unsupervised visitation time with the children on alternate weekends from Friday 7 PM to Sunday  
4 7 PM.

5 4) Now on for hearing is Mother's Request for Order filed 4/17/2026 seeking guideline child  
6 support, temporary guideline spousal support, and \$50,000 in need-based attorney's fees and  
7 costs. Mother states the parties' marital standard of living was in the top 1%. Mother states Father  
8 earns \$1.7 million annually as an oral surgeon whereas she earns \$573,428 annually as a self-  
9 employed dentist. Mother states she currently cannot work because Father dislocated her jaw and  
10 knocked out a tooth and her jaw is wired shut.

11 5) On 3/27/2026, Mother filed an Income and Expense Declaration. Mother states that she is 48  
12 years old. Mother estimates that Father earns \$141,941 per month (i.e. \$1,703,292 annually)  
13 based on her personal knowledge of work performed as an oral surgeon as well as her personal  
14 knowledge of K-1s and prior tax returns. Mother states she earns \$47,785 per month (i.e.,  
15 \$573,420 annually) in net self-employment income as a dentist. Mother states that her monthly  
16 expenses total \$62,930, which includes \$21,00 per month for mortgage, \$8,800 per month for au  
17 pair, \$2,400 per month for groceries, \$9,500 per month for school tuition, and \$6,600 for camps  
18 and extracurricular activities for the children plus special services. Mother states that she has  
19 \$50,000 in cash savings, \$40,000 in easily saleable investments, and her estimate of the total  
20 value of the marital estate is \$8 million. Mother lists the following debts: \$16,000 for Honda,  
21 \$28,000 for Porsche, and \$45,000 in credit card debt. Mother attached her K-1s for 2023 and  
22 2024. Mother states that she has paid her attorney \$14,500 to date using savings and that she does  
23 not currently owe any amount to her attorney.

24 6) On 5/19/2026, Mother's attorney Joseph Willmore filed a declaration stating that he has 13 years  
25 of experience as a family lawyer, is a Certified Family Law Specialist, and he charges \$525 per  
26 hour. Mr. Willmore states Mother has incurred \$11,197.40 in fees and costs thus far and he  
27 anticipates an additional \$50,000 in fees including multiple hearings on the restraining order,  
28 child custody, spousal support, issues concerning occupancy and sale of the marital residence,  
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1 meet-and-confer efforts, review of responsive pleadings, correspondence, preparing for  
2 hearing(s), hearing(s), evidentiary hearing(s), trial, preparing orders and Judgment.

3 7) On 6/25/2026, Father filed a Responsive Declaration asking that the Court deny or reserve  
4 jurisdiction on temporary spousal support until Mother has provided current profit and loss  
5 statements, balance sheets, and related business records for her two dental practices. Father states  
6 the Court should reserve jurisdiction on child support because custody and parenting time will  
7 likely change after the domestic violence proceedings conclude on 7/28/2026. Father states the  
8 Court should deny Mother's request for attorney's fees because she has not demonstrated need or  
9 a meaningful disparity in access to funds. Father states that he is currently paying \$21,500 per  
10 month for carrying costs for the family home where Mother exclusively resides with the children.  
11 Father also states that Mother omitted mention of the \$8,500 per month she receives from IHHS  
12 as the caregiver of their special needs child Lucas.

13 8) On 6/26/2026, Father filed an Income and Expense Declaration. Father states that he is 48 years  
14 old. Father estimates that Mother earns \$56,285 per month (i.e. \$675,420) based on the \$47,785  
15 per month that Mother reports earning plus "\$8,500 IHHS income not disclosed." Father states  
16 that the parties have three properties (two in Hawaii and one in Las Vegas) that generate a loss  
17 each month. Father states that he earns \$104,333 in net self-employment income per month as an  
18 oral and maxillofacial surgeon. Father states that his monthly revenue decreased over the past 12  
19 months by \$25,000 to \$30,000 per month due to "changes in ownership, patient flow, and  
20 referrals at multiple dental offices where I practice." Father states that he has \$9,000 in cash  
21 savings, \$563,000 in easily saleable investments, and the parties own \$8.5 million in equity in  
22 various real properties. Father states his monthly expenses total \$82,295, which includes \$21,500  
23 for mortgage for the family residence, \$18,000 for rent for himself, \$3,500 in anticipated  
24 childcare, and \$26,000 for personal expenses charged to his credit card. Father states he has paid  
25 \$17,810 to his attorney to date using "earnings" and he still owes his attorney \$500.

26 9) On 7/7/2026, Mother filed a Reply Declaration reiterating her original requests for order, with  
27 support retroactive to 4/1/2026. Mother requests that the Court use \$141,941 for Father's monthly  
28 net self-employment income in a support calculation. Mother states the domestic violence trial is  
29 anticipated to be four days in length and is "not scheduled to conclude until October 2026."

1 Mother states Father has made no voluntary support payments and has contributed “nothing”  
2 towards expenses for childcare (au pair), private school tuition, extracurricular activities, camps,  
3 and special services, which Mother states total \$29,800 per month. Mother states that Father  
4 purchased a new home in Hawaii on 4/26/2026 with a purchase price of \$1.9 million, with a  
5 \$700,000 down payment, which Mother states is a breach of Father’s fiduciary duty to the  
6 community. Mother also states Father failed to attach a “single K-1” to his Income and Expense  
7 Declaration and only provided a “very deficient document that he purports to be his Profit & Loss  
8 Statement” which covers a mere 5 month period between January and May 2026. Mother also  
9 states Father failed to provide a balance sheet. Mother states that “officer salary” (\$80,000)  
10 should be added back to Father’s income as well as a \$5,502 for “ask my accountant” because it  
11 is “not a valid deduction.” Mother states that her most recent Income and Expense Declaration  
12 provides three years of K-1s and her most recent P&L. Mother attached to her Reply Declaration  
13 a K-1 for Father for 2024 which Mother states shows Father’s “actual income of \$141,931.”

14 10) On 7/7/2026, Mother filed an updated Income and Expense Declaration which now specifies that  
15 Father has paid the mortgage on the marital home (where Mother exclusively resides with the  
16 children) of \$21,000 per month since March 2026. Mother also states that she has now paid her  
17 attorney \$58,000 using savings, income, and credit. Mother now attaches a K-1 for 2025, a  
18 balance sheet for 2025, and a Profit and Loss Statement for 2025. Mother also attaches earnings  
19 statements from IHSS which show \$46,340.75 in total net pay as of 5/31/2026 (i.e., \$9,268 per  
20 month).

## 21 **B. Findings and Order**

- 22 1) The Court finds good cause to continue the hearing on Mother’s Request for Order filed  
23 4/17/2026 to **Thursday, 8/27/2026 at 9:00 AM in Dept. 404** for the following reasons:
- 24 a. The domestic violence trial is currently scheduled to end on 7/28/2026, which may  
25 impact timeshare.
  - 26 b. Neither party filed a Statement of Support Calculations, as required by San Francisco  
27 Local Rule 11.7(A)(2)(b)
  - 28 c. Mother provided new substantive information in her pleadings filed on 7/7/2026
  - 29 d. The Court needs additional information for Father.

- 1 2) At least 20 calendar days prior to the next hearing date, Father shall file and serve an updated  
2 Income and Expense Declaration which includes as attachments his balance sheets for 2024  
3 and 2025, K-1 for 2025, and an updated Profit and Loss Statement for 2026.
- 4 3) At least 10 calendar days prior to the next hearing date, both parties shall file and serve a  
5 Statement of Support Calculations which shall include as an attachment a proposed XSpouse  
6 calculation. Father shall address in his Statement of Support Calculations Mother's request  
7 that "officer salary" be added back to Father's income as well as fees for "ask my  
8 accountant."
- 9 4) Between now and the date of the new hearing, Father shall continue to pay for the carrying  
10 costs for the marital residence where Mother resides and the parties shall share equally the  
11 following expenses for the children that are currently due or that become due for payment  
12 between now and the date of the new hearing, subject to reallocation at the next hearing date:  
13 a. Private school tuition;  
14 b. Extracurricular activities;  
15 c. Camps;  
16 d. Childcare so either party can work (including au pair).
- 17 5) Mother's attorney shall prepare the Findings and Order After Hearing.
- 18 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing –  
19 within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the  
20 other party/counsel for approval, and follow the procedures set forth in CA Rules of Court,  
21 Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit  
22 the proposed order after hearing directly to the court. Failure to submit the order after  
23 hearing within 10 days may allow the other party to prepare a proposed order and submit it to  
24 the court in accordance with CA Rules of Court, Rule 5.125(d).
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